

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC,
COMPLAINANT,

V.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.,
RESPONDENT AND CROSS-COMPLAINANT,

V.

MSC MEDITERRANEAN SHIPPING COMPANY S.A. AND MEDITERRANEAN
SHIPPING COMPANY (USA) INC.,

RESPONDENTS AND CROSS-RESPONDENTS.

**VERIFIED ANSWER OF MEDITERRANEAN SHIPPING COMPANY S.A., AND
MEDITERRANEAN SHIPPING COMPANY (USA) INC TO CROSS-COMPLAINT OF
FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.**

Respondents and Cross-Respondents MSC Mediterranean Shipping Company S.A. (“MSC S.A.”), and Mediterranean Shipping Company (USA) Inc. (“MSC USA”), as agent for MSC S.A. (collectively “MSC”) hereby respond to the Verified Cross-Complaint of Respondents and Cross-Complainant FedEx Trade Networks Transport & Brokerage, Inc. (“FTN”).

I. CROSS-COMPLAINANT

1. MSC lacks sufficient information to admit or deny the first sentence. Admit as to the second sentence.

II. CROSS-RESPONDENTS

2. Admit.

3. Admit.

III. JURISDICTION

4. This paragraph contains a legal conclusion to which no response is required.

5. The content of paragraph 5 speaks for itself, and therefore does not require a response.

6. Deny.

IV. FACTUAL ALLEGATIONS

7. Admit.

8. Admit.

9. Admit.

10. Admit.

11. Admit that MSC invoiced FTN for the charges discussed in Paragraph 11. Deny that MSC assessed any charges against FTN's subcontracted motor carriers.

12. Statements (a) and (c) are legal conclusions that do not require a response but, if a response is required, they are denied. Admit statement (b).

13. Admit that the lawsuit referenced in Paragraph 13 was filed in the U.S. District Court for the District of Maryland. The content of the pleadings and settlement referenced in Paragraph 13 speak for themselves.

14. MSC admits that it entered into an apparent settlement with ADG as a courtesy to FTN, but denies the commercially unreasonable interpretation of that apparent settlement that FTN is released from all liability for all time for any claims relating in any way to the WRO Containers. MSC further denies that FTN, a non-signatory to the apparent settlement, can invoke the release in this litigation.

15. Admit.

V. VIOLATIONS OF THE SHIPPING ACT

16. Paragraph 16 speaks for itself and therefore no response is required.

17. Deny.

VI. CAUSATION AND INJURY TO COMPLAINANT

18. Deny.

VII. ALTERNATIVE DISPUTE RESOLUTION

19. Admit that there have been discussions between the parties regarding a potential settlement, but deny the implication that MSC is the reason why these discussions were not successful.

Respectfully submitted,



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*Co-Counsel for Mediterranean Shipping Company
S.A. and Mediterranean Shipping Company (USA)
Inc., as agent for Mediterranean Shipping Company
S.A.*

Dated: November 26, 2024

VERIFICATION

VERIFICATION OF RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY, S.A.

I, Nicholas Hargreaves, hereby verify as follows:

1. I am the Internal Counsel for Mediterranean Shipping Company (USA), as agent of MSC Mediterranean Shipping Company, S.A.
2. I am authorized to make this verification on behalf of MSC Mediterranean Shipping Company, S.A.
3. I declare under penalty of perjury under the laws of the United States that the foregoing answer is true and correct to the best of my knowledge, information, and belief.

Dated: November 26, 2024



Name: Nicholas Hargreaves

Title: Internal Counsel for MSC USA as agent for MSC Mediterranean Shipping Company S.A.

VERIFICATION

VERIFICATION OF RESPONDENT MEDITERRANEAN SHIPPING COMPANY (USA)

I, Nicholas Hargreaves, hereby verify as follows:

1. I am the Internal Counsel for Mediterranean Shipping Company (USA)
2. I am authorized to make this verification on behalf of Mediterranean Shipping Company (USA)
3. I declare under penalty of perjury under the laws of the United States that the foregoing answer is true and correct to the best of my knowledge, information, and belief.

Dated: November 26, 2024

A handwritten signature in blue ink, appearing to read 'N. Hargreaves', followed by a long horizontal flourish.

Name: Nicholas Hargreaves

Title: Internal Counsel for MSC USA

CERTIFICATE OF SERVICE

I do hereby certify that I have delivered a true and correct copy of the foregoing Verified Answer on the parties to this proceeding via email transmission on this 26th day of November, 2024.

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Wayne R. Rohde